

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

14. KELLI JEANCOQ V. RAYMOND LONERGAN

PFL20190708

Respondent filed a Request for Order (RFO) on March 17, 2026, seeking child custody, parenting time, and child support orders. Respondent did not file an Income and Expense Declaration. The parties were not referred to Child Custody Recommending Counseling (CCRC), as there had been a referral within the prior six months. Proof of Service shows Petitioner was mail-served on March 27, 2026.

Petitioner has not filed a responsive declaration.

The court denies Respondent's request to modify the current orders. The court notes there is a Domestic Violence Restraining Order in place, which protects the minor. Respondent has failed to set forth how the Family Code section 3044 presumption has been overcome. Further, Respondent has failed to set forth how the requested modifications would be in the minor's best interest.

As to the request to modify child support, "[f]or all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve his or her Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Respondent has failed to file and serve an Income and Expense Declaration. As such, the request to modify child support is denied.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT DENIES RESPONDENT'S REQUEST TO MODIFY THE CURRENT ORDERS. THE COURT NOTES THERE IS A DOMESTIC VIOLENCE RESTRAINING ORDER IN PLACE, WHICH PROTECTS THE MINOR. RESPONDENT HAS FAILED TO SET FORTH HOW THE FAMILY CODE SECTION 3044 PRESUMPTION HAS BEEN OVERCOME. FURTHER, RESPONDENT HAS FAILED TO SET FORTH HOW THE REQUESTED MODIFICATIONS WOULD BE IN THE MINOR'S BEST INTEREST.

AS TO THE REQUEST TO MODIFY CHILD SUPPORT, THE REQUEST IS DENIED DUE TO RESPONDENT'S FAILURE TO FILE AN INCOME AND EXPENSE DECLARATION.

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ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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15. DCSS V. ANTWON LILES (OTHER PARENT: CASSANDRA THORP) PFS20170306

Respondent filed a Request for Order (RFO) on February 24, 2026, seeking modification of the current child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 2, 2026, and a review hearing on May 28, 2026. Proof of Service shows Other Parent was served at an address in Cameron Park. The address verification shows the verified address in El Dorado. There is no Proof of Service showing DCSS was served.

Neither party appeared for CCRC.

Neither Petitioner nor Other Parent have filed a responsive declaration.

The court drops the matter from calendar due to the lack of proper service as well as Respondent's failure to appear at CCRC.

TENTATIVE RULING #15: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE AS WELL AS RESPONDENT'S FAILURE TO APPEAR AT CCRC.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.